

## **Tentative Rulings for Department 501**

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**Tentative Ruling**

Re: **Gallardo v. Jedahl**  
Superior Court Case No. 26CECG00465

Hearing Date: August 13, 2026 (Dept. 501)

Motion: Commissioner Gary L. Green's Demurrer to First Amended Complaint

**Tentative Ruling:**

To sustain Commissioner Green's demurrer to the First Amended Complaint without leave to amend. (Code Civ. Proc., § 430.10, subd. (e).)

**Explanation:**

In this action plaintiff Raul Gallardo asserts one cause of action for open book account, seeking \$15,000,000 in damages, against Commissioner Gary L. Green. The claim against Commissioner Green arises from his actions as a judicial officer in a separate legal proceeding in which plaintiff's public defender, defendant Hillary Liljedahl, stipulated to Commissioner Green presiding over plaintiff's criminal child support case. Plaintiff alleges that Liljedahl's stipulation was without plaintiff's consent or authorization. In addition to the common count, plaintiff asserts a cause of action for fraud against Liljedahl only.

Commissioner Green's demurrer will be sustained without leave to amend for two reasons. First, this court lacks jurisdiction to challenge actions by a judicial officer in a separate action.

"[A] public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability." (Govt. Code, § 815.2, subd. (b)). "Absolute judicial immunity 'insulates judges from charges of erroneous acts or irregular action.'" (*Burton v. Il Capital Mgmt.* (9th Cir. 2014) 753 F.3d 954, 959, quoting *In re Castillo* (9th Cir. 2002) 297 F.3d 940, 947.) "It bars civil actions against judges for acts performed in the exercise of their judicial functions and applies to all judicial determinations, including those rendered in excess of the judge's jurisdiction, no matter how erroneous or even malicious or corrupt they may be. (Citations omitted)." (*Howard v. Drapkin* (1990) 222 Cal.App.3d 843, 851; see also *Castillo*, 297 F.3d at p. 947 quoting *Forrester v. White* (1988) 484 U.S. 219, 225.) Judicial immunity extends to all civil suits arising out of a judge's judicial functions (*Mireles v. Waco* (1991) 502 U.S. 9, 11), which means it applies to damages suits and "actions for declaratory, injunctive and other equitable relief." (*Moore v. Brewster* (9th Cir. 1996) 96 F.3d 1240, 1244, superseded by statute on other grounds.) Judicial immunity is an absolute immunity from suit. (See *Mitchell v. Forsyth* (1985) 472 U.S. 511, 526.)

Plaintiff's discussion of Code of Civil Procedure section 664.6 and related cases are irrelevant. Section 664.6 has nothing to do with judicial immunity. It concerns court's jurisdiction to enforce the terms of settlement agreements in civil actions. These

authorities have no bearing here. The opposition cites to no authority supportive of plaintiff's position that judicial decisions such as that at issue here can be collaterally attacked in a separate action.

Additionally, the cause of action for open book account seeks \$15,000,000 in damages. "[A] plaintiff must allege facts demonstrating or excusing compliance with the claim presentation requirement." (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1243.) "Otherwise, his complaint is subject to a general demurrer for failure to state facts sufficient to constitute a cause of action." (*Ibid.*) Under Government Code section 945.4, "no suit for money or damages may be brought against a public entity ... until a written claim therefore has been presented to the public entity and has been acted upon by the Board, or has been deemed to be have been denied by the Board."

The claim must be submitted to the “clerk, secretary, or auditor” or to the governing body of the public (Gov. Code, § 915) within six months of accrual of the cause of action (Gov. Code, § 911.2). The claim filing requirement applies to any lawsuit for damages against the public entity or its employees. (Gov. Code, §§ 911.2, 950.2, 945.4.)

Here, the FAC does not allege compliance with the Tort Claims Act, and the opposition does not address the issue, indicating that there is no likely effective amendment that can be made to save the claim.

Because Commissioner Green is entitled to judicial immunity, the demurrer is sustained without leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

## Tentative Ruling

Issued By: KCK on 08/12/26  
(Judge's initials) (Date)